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No.

10 – Cynthia Zavala v. City of Compton

Plaintiff

Cynthia Zavala's Motion for Order Deeming Requests for Admission Admitted and
Motions to Compel Initial Responses to Form Interrogatories and Requests for Production

Plaintiff

Cynthia Zavala moves for an order deeming that City of Compton has admitted the truth of the matters specified in Plaintiff's requests for admission. Plaintiff also moves for an order compelling initial responses to form interrogatories (general), form interrogatories (employment), and requests for production.

A

party must respond to written discovery "[w]ithin 30 days after service." (Code Civ. Proc., §§ 2030.260(a) [interrogatories], 2031.260(a) [requests for production], 2033.250(a) [requests for admission].) When the responding party fails to serve a timely response to interrogatories or requests for production, the requesting party may move for an order compelling responses. (Code Civ. Proc., §§ 2030.290(b) [interrogatories], 2031.300(b) [requests for production].) Failing to serve a timely response results in waiving any objections. (Code Civ. Proc., §§ 2030.290(a), 2031.300(a).) When a party fails to serve a timely response to requests for admission, "[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction." (Code Civ. Proc., § 2033.280(b).) "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for

admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc., § 2033.280(c).)

For the requests for admission, Defendant failed to serve timely responses. Plaintiff served its requests for admission on March 23, 2026. (Westmoreland Decl., ¶ 3.) The deadline to respond was April 27, 2026. (Id., ¶ 9.) As of the date this motion was filed, Defendant had still not responded. (Id., ¶ 11.) However, Defendant later served verified responses on May 18, 2026. (5/20/26 Notice of Errata, Ex. 8.) The Court finds that these responses are in substantial compliance with CCP § 2033.220. Therefore, no order deeming requests for admission admitted is necessary.

For the form interrogatories and requests for production, Defendant failed to serve timely responses. On July 2, 2026, Defendant served responses to all requests, but all responses were unverified. (See Binns Decls., Ex. 8.) An unverified discovery response is treated as no response. (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636-637.) However, Defendant fixed this issue in a 7/8/26 notice of errata, stating that it failed to attach its verification page to the previous exhibits. There is evidence that the responses are verified. Therefore, no order compelling responses is necessary

Sanctions

Plaintiff

requests monetary sanctions for \$26,751.80 against Defendant. For requests for admission, Code of Civil Procedure section 2033.280(c) provides, “It is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” Code of Civil Procedure section 2031.300(c) provides, “[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (See also Code Civ. Proc., § 2030.290(c) [interrogatories].)

While

it is true that Defendant failed to provide responses by the deadline, the Court finds the imposition of sanctions would be unjust under the

circumstances. Here, Plaintiff served the discovery on the City Attorney's Office despite knowing that there was no City Attorney at the time and that Defendant was represented by outside counsel. (Binns Decl., ¶ 6; Owens Decl., ¶ 4.) Further, when newly appointed counsel for Defendant introduced himself to Plaintiff's counsel via email, Plaintiff's counsel made no effort to inquire about the outstanding discovery responses. (Owens Decl., ¶¶ 8-9, Ex. 2.) Mentioning the outstanding discovery that was served elsewhere would have been a common courtesy, especially where an attorney wants to receive timely responses. Plaintiff's counsel did not make any meaningful effort to ensure that the correct counsel knew about the pending discovery requests. Once defense counsel learned about the discovery, they served verified responses. The Court declines to issue sanctions in these circumstances.

Disposition

Plaintiff

Cynthia Zavala's motion to deem matters admitted and three motions to compel initial responses to discovery requests are denied.

Defendant

City of Compton's Motion to Disqualify Plaintiff's Counsel

Defendant

City of Compton moves to disqualify counsel Dominique Westmoreland and The Westmoreland Law Firm, P.C. (collectively, "Westmoreland") from representing Plaintiff Cynthia Zavala in this action.

As

an initial matter, the Court notes two procedural defects in the parties' briefing. First, Plaintiff's opposition brief is overlength by 5 pages. Under California Rules of Court, rule 3.1113(d), responsive briefs are limited to 15 pages. Plaintiff did not request leave of court to file an overlength brief. Overlength briefs are considered late papers. (Cal. Rules of Court, rule 3.1113(g).) The Court has discretion to disregard an untimely filing. (See Cal. Rules of Court, rule 3.1300(d)).

Second,

Defendant's reply brief was not timely served or filed. Under Code of Civil Procedure section 1005(b), all reply papers must be served at least 5 court days before the hearing. Here, Defendant served the reply brief on Plaintiff and

filed the brief with the Court on July 13, 2026, only three court days before the hearing. There is no explanation for this delay in the papers.

The

Court will exercise its discretion to consider both Plaintiff's overlength opposition brief and Defendant's untimely reply brief when ruling on this motion. The Court advises both parties to comply with all applicable court rules in the future, for the Court does not need to consider non-compliant briefs.

Request

for Judicial Notice

Defendant requests the Court take

judicial notice of 23 exhibits containing pleadings filed in 23 different legal matters in which attorney Westmoreland participated as counsel. These exhibits consist entirely of court records that are subject to judicial notice under Evidence Code section 452(d). The request for judicial notice is granted.

Evidentiary

Objections

Plaintiff

makes several evidentiary objections to the evidence submitted by Defendant and various statements in its motion. The objections are not numbered consecutively as required under California Rules of Court, rule 3.1354(b). As such, the objections are overruled.

Disqualification

Code

of Civil Procedure section 128 provides that every court has the power "[t]o control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto." (Id., subd. (a)(5).) A trial court's authority to disqualify an attorney stems from this inherent power. (Zador Corp v. Kwan (1995) 31 Cal.App.4th 1285, 1292.)

"In

order to seek disqualification, the former client need not establish that the attorney actually possesses confidential information. It is enough to show that there was a 'substantial relationship' between the former and the current representation. If the former client establishes the existence of a substantial relationship between the two representations the court will conclusively presume that the attorney possesses confidential information adverse to the former client and order disqualification." (Henriksen v. Great American Savings & Loan (1992) 11 Cal.App.4th 109, 114.) "[C]urrent and former matters are deemed substantially related only 'if they involve a substantial risk of a violation' of a duty owed the former client." (Victaulic Company v. American Home Assurance Company (2022) 80 Cal.App.5th 485, 511-512 [citing California Rules of Professional Conduct, Rule 1.9, comment 3].)

Defendant

City of Compton, as Westmoreland's former client, argues that Westmoreland should be disqualified because (1) the present case is substantially related to his prior representation of the City in other matters; and (2) he possesses confidential information due to his close relationship with the former City Attorney. The Court will address each argument in turn.

1. Substantial Relationship

Defendant

argues that Westmoreland should be disqualified based on his prior representation of the City in several matters as a contract attorney. Defendant cites 23 separate legal matters in which Westmoreland participated, including two matters involving wrongful termination or employment discrimination claims. (See Motion, at pp. 9-11.) Specifically, Defendant contends that Westmoreland's representation of the City in Justine Bell v. City of Compton, in which Plaintiff was Bell's direct supervisor in the City's Water Department, is substantially related to the present case. Defendant claims that, when investigating this matter, Westmoreland spoke directly with Plaintiff regarding her alleged mistreatment of Bell. Defendant submits several exhibits showing Westmoreland and Zavala's pre-representation communications in connection with the Bell matter. (See Montgomery Decl., Exs. 23-24.)

The

Court has reviewed the communications between Plaintiff and Westmoreland and does not find they reveal any "substantial relationship" between Westmoreland's

former representation of the City in the Bell matter and his current representation of Plaintiff pursuing her own employment claims. Rather, the correspondence reveals superficial communications about where to locate certain HR documents. Further, Westmoreland's mere representation of the City in a matter in which Plaintiff is alleged to have mistreated Bell does not bear a substantial relationship to Plaintiff's separate claims of discrimination and retaliation against the City based on conduct by a different employee. The two matters necessarily involve separate factual and legal issues.

Similarly, in reply, Defendant argues that Westmoreland's representation of the City in *Dejanee Stafford v. City of Compton, et al.* is substantially related to the instant matter because Stafford's claims were "virtually identical to Zavala's claims [in] her First Amended Complaint in this action." (Reply, at p. 8.) However, instead of describing how the factual and legal issues in both matters are substantially related, Defendant merely lists Stafford's causes of action. While the Court acknowledges that both actions superficially involve FEHA claims and whistleblower retaliation, it is not apparent how the claims in Stafford relate to the issues in this dispute. Indeed, many FEHA claims include the same causes of action. Nor is there any evidence that Westmoreland obtained any material confidential information through his representation in Stafford. The "materiality requirement is not satisfied by mere relevance." (*Victaulic Company v. American Home Assurance Company* (2022) 80 Cal.App.5th 485, 512.)

Defendant also argues at length that Westmoreland has "insider" knowledge of the City's litigation strategies and settlement policies in employment matters that give him an unfair advantage in the instant matter. However, knowledge of general policies or "playbook information" alone is insufficient to disqualify counsel without showing its materiality. (See *Khani v. Ford Motor Co.* (2013) 215 Cal.App.4th 916, 922.) Defendant fails to make such a showing.

Therefore, there is no evidence that Westmoreland's representation of the City in other matters resulted in him gaining confidential information that is material to Plaintiff's specific employment claims in the instant matter.

2. Other

Confidential Information

Defendant

argues that Westmoreland possesses sensitive confidential information because Westmoreland and the former City Attorney, Eric Perrodin, are friends and allies. According to Defendant, Perrodin is the “most percipient witness” in this matter and “the only individual with the information necessary to defend against Plaintiff’s claims.” (Motion, at p. 14.)

This

argument is speculative. Defendant provides no evidence showing that Westmoreland’s alleged friendship with a former City employee will cause Westmoreland to violate his duties to his former client just because that former employee may be a witness supporting the City’s defense. This also fails to meet the materiality requirement.

Disposition

Defendant City of Compton’s motion for disqualification is denied.